

mandate to correct an allegedly wrongful denial of her Medical Exemption Request, yet her verified allegations concede that Maximus is not a government administrative body responsible for the challenged decision.

A petition for writ of mandate must name the real party in interest, who thereafter has a right to notice and to be heard before a court issues a writ. (*Sonoma County Nuclear Free Zone v. Superior Court* (1987) 189 Cal.App.3d 167, 173, citations omitted.) “Real party in interest” has been generally defined as “any person or entity whose interest will be directly affected by the proceeding. (*Id.* at 173-174, citations omitted.)

The California Welfare and Institutions Code vests the Department of Health Care Services with authority over the administrative hearing process for Medi-Cal beneficiaries and the TAC concedes that “Maximus Federal Services is DHCS’s contractor and responsible for MER processing.”

Maximus correctly argues that government contractors, like Maximus, are not “real parties in interest” simply based on their being hired to manage a state-mandated program. (See *Hayes v. State Dept. of Developmental Services* (2006) 138 Cal.App.4th 1523, 1532 [where government agency holds power to set aside the decision made by their hearing officer / representative, agency could direct its representative to enter a new and different decision consistent with the trial court's ruling so a petitioner can be accorded complete relief without the contractor responsible for administering the hearing].) Maximus is not alleged to hold any particular interest or stake in the outcome of the administrative decision being reviewed.

Maximus’s demurrer to the writ is supported by petitioner’s own disaffirmance of any allegation that Maximus was the final decisionmaker. (Memorandum of Points and Authorities in Support of Opposition, 13:24-14:1.) The demurrer is further supported by the California Department of Health Care Services (apparently the correctly-named government entity), which requests that Maximus be dismissed as an improperly-named party. (Memorandum of Points and Authorities in Support of Demurrer, filed April 27, 2026, 21:16-18.)

5. 9:00 AM CASE NUMBER: C24-03270
CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
HEARING IN RE: JOINDER IN DEMURRER INITIALLY FILED BY CO-RESPONDENT CALIFORNIA
DEPARTMENT OF HEALTH CARE SERVICES ON APRIL 27, 2026
FILED BY: CALIFORNIA DEPARTMENT OF SOCIAL SERVICES

TENTATIVE RULING:

CONTINUED. Please see Line 3.

6. 9:00 AM CASE NUMBER: C24-03270
CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
HEARING IN RE: JOINDER IN RESPONDENTS BAAS AND CALIFORNIA DEPT. OF HEALTH CARE
SERVICES 09/21/26 DEMURRER
FILED BY: MAXIMUS, INC.

TENTATIVE RULING:

DENIED as moot. Please see Line 4.